

and therefore where two trustees, under such a power, enabled a third to receive moneys, who misapplied them, and the fraud was concealed for two years, the two were held not to be responsible, though but for the special power they would have been declared liable on the ground of *crassa negligentia* (a); [and this case has since been followed (b).]

Sixthly. A Trustee shall not make a *profit* of his office.¹

1. **Trustees shall derive no advantage from the trust.** — It is a general rule established to keep trustees in the straight line of their duty, that they shall not derive any personal advantage from the administration of the trust property (c).

(a) *Wilkins v. Hogg*, 3 Giff. 116; 10 W. R. 47.

[(b) *Pass v. Dundas*, 43 L. T. N. S. 665; 29 W. R. 332.]

(c) *Burgess v. Wheate*, 1 Eden, 226, *per* Lord Mansfield; *Ib.* 261, *per* Lord Henley; *O'Herlihy v. Hedges*, 1 Sch. & Lef. 126, *per* Lord Redesdale; *Ex parte Andrews*, 2 Rose, 412, *per* Sir T. Plumer; *Middleton v. Spicer*, 1 B. C. C. 205, *per* Lord Thurlow; *Docker v. Somes*, 2 M. & K.

664, *per* Lord Brougham; *Gubbins v. Creed*, 2 Sch. & Lef. 218, *per* Lord Redesdale; and see *Hamilton v. Wright*, 9 Cl. & Fin. 111; *Bentley v. Craven*, 18 Beav. 75; [*Bennett v. Gaslight and Coke Company*, 52 L. J. N. S. Ch. 98.] A legacy therefore to a person as a mere trustee for others, is not invalidated by the fact of such trustee or his wife being an attesting witness to the will. *Cresswell v. Cresswell*, 6 L. R. Eq. 69.

¹ *Profits of the trust.* — Trustees are appointed for the purpose of managing the trust property, and trusts are created for the benefit of children, women, persons for some reason incapacitated, or for those whom a testator may think unsuited to take proper care of property. It naturally follows that a trustee should take no advantage of his position to receive personal gain from the trust property, his duty being to protect it, and that, too, without having an adverse interest. *Parshall's App.* 65 Pa. St. 233; *Sloo v. Law*, 3 Blatchf. C. C. 459. A person holding any fiduciary relation to an estate cannot buy up debts against, or incumbrances upon it, at a discount without accounting for the full benefit derived to the estate or the party, having the beneficial interest therein; *King v. Cushman*, 41 Ill. 31; *Slade v. Van Vechten*, 11 Paige, 21; *Schoonaker v. Van Wyck*, 31 Barb. 457; *Barksdale v. Finney*, 14 Gratt. 338. And it has been held that the trustee may not receive a gift nor make a purchase from his *cestui que trust*; *Green v. Winter*, 1 Johns. Ch. 26; *Andrews v. Hobson*, 23 Ala. 219; *Mason v. Martin*, 4 Md. 124; *Baxter v. Costin*, 1 Busb. Eq. 262; but if the trustee, who has the burden of proof, shows that such gift or purchase was entirely fair and above suspicion, it may stand; *Harrington v. Brown*, 5 Pick. 519; *Lyon v. Lyon*, 8 Ired. Eq. 201; *Smith v. Isaac*, 12 Mo. 106; *Stuart v. Kissam*, 2 Barb. 493; yet the *cestui trust* may have such a sale set aside; *Smith v. Lansing*, 22 N. Y. 530; *Evertson v. Tappen*, 5 Johns. Ch. 497; *Wiswall v. Stewart*, 32 Ala. 433; *Iddings v. Bruen*, 4 Sandf. Ch. 222; *Patton v. Thompson*, 2 Jones Eq. 285; *Bellamy v. Bellamy*, 6 Fla. 62. See notes *ante* on resulting and constructive trust and